

DEPOSITION OF SHASA CURL

FILED BY: MONTOYA, ANGEL

TENTATIVE RULING:

This matter has been reassigned to Department 32 pursuant to Code of Civil Procedure section 170.6 and reset for May 29, 2026.

6. 9:00 AM CASE NUMBER: C24-00136

CASE NAME: RONALD WEBSTER VS. GREGORY BROOKS

***HEARING ON MOTION IN RE: STRIKE CCP 425.16 AND REQUEST FOR ATTORNEY FEES**

FILED BY: BOYD, STACEY

TENTATIVE RULING:

Plaintiff Ronald Webster has sued several governmental agents and entities, including Stacey Boyd for intentional torts. A demurrer to his complaint is being heard contemporaneously with this motion. The fourth cause of action against Stacey Boyd, added August 28, 2025, is for general negligence arising out of an incident on December 20, 2024 where Plaintiff attempted to serve summons of this lawsuit through her. He alleges that Ms. Boyd accepted service on behalf of the county, but later signed a declaration indicating she could not do so. This improper service was the basis for setting aside a default judgment. Defendant Boyd now seeks to strike this cause of action pursuant to California Code of Civil Procedure section 425.16(b) (Anti-SLAPP). The Court received no timely opposition.

Section 425.16(b)(1) states: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim."

"Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by [Code of Civil Procedure,] section 425.16. If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384 (internal citations omitted).)

The claim in the fourth cause of action is entirely related to this pending litigation and arises out of communications that have "some connection . . . to the action." (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1241.) That renders it subject to the litigation privilege. "The litigation privilege, codified at Civil Code section 47, subdivision (b), provides that a publication or broadcast made as part of a judicial proceeding is privileged. This privilege is absolute in nature, applying to all publications, irrespective of their maliciousness." (*Timothy W. v. Julie W.* (2022) 85 Cal.App.5th 648, 661-662.) The privilege "is not limited to statements made during a trial or other proceedings, but may extend to steps taken prior thereto, or afterwards." (*Action Apartment Assn., supra*, 41 Cal.4th at 1241.) The first prong of the anti-SLAPP analysis has therefore been met.

Plaintiff has not filed any rebuttal to this claim of litigation privilege. The Court finds that there is therefore no showing of probability of success on the merits. Defendant's Motion to Strike is therefore **granted**. Stacey Boyd is the prevailing party on this motion and may file a motion for attorneys' fees.

7. 9:00 AM CASE NUMBER: C24-00136
CASE NAME: RONALD WEBSTER VS. GREGORY BROOKS
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: CONTRA COSTA COUNTY IN-HOME SUPPORTIVE SERVICES PUBLIC AUTHORITY
TENTATIVE RULING:

Introduction

Before the Court is Defendant Contra Costa County In-Home Supportive Services Public Authority's ("Defendant") Demurrer. The Demurrer relates to Plaintiff Ronald Deshawn Webster's ("Plaintiff") Second Amended Complaint ("SAC") filed on August 28, 2025. The SAC is a form complaint with six general negligence cause of action attachments. Five causes of action are against Defendant Contra Costa County In-Home Supportive Services Public Authority, and one cause of action is solely against Stacey Boyd.

Defendant demurs to Plaintiff's SAC on several grounds including failure to comply with the mandatory claim presentation requirements of the Government Claims Act, vague and unintelligible, and fails to state facts sufficient to constitute a cause of action.

For the following reasons, **the Demurrer is sustained without leave to amend.**

Meet and Confer Requirement

Defendant satisfied its meet and confer requirement regarding their demurrer in detailing their efforts in reaching out to Plaintiff by email and telephone regarding the First Amended Complaint and Second Amended Complaint. (Zhurnalova-Jupponov Decl. at ¶¶ 4-5, 7-8.) However, the parties were unable to reach an agreement. (Zhurnalova-Jupponov Decl. at ¶¶ 8-9.)

Request for Judicial Notice

Defendant requests the Court take judicial notice of four items: the fact that Contra Costa County In-Home Supportive Services Public Authority is a public entity, Exhibit A, the Declaration of Contra Costa County Liability Claims Adjuster Sarah Ely; Exhibit B, Plaintiff's First Amended Complaint ("FAC"); and Exhibit D, Plaintiff's Second Amended Complaint ("SAC").

In support of the fact that Contra Costa County In-Home Supportive Services Public Authority is a public entity, Defendant quotes Contra Costa County, California Ordinance Code Sec. 55-2.402, which provides in part that "The Contra Costa County in-home supportive services public authority shall be a corporate public body, exercising public and essential governmental functions, that has all the powers necessary or convenient to carry out the delivery of in-home supportive services in Contra Costa County..." Thus, this is a fact subject to judicial notice because judicial notice may be taken of "facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code §